

		revised documents (e.g., revised settlement agreement, revised notice, revised proposed order). Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service. Plaintiff must also serve the LWDA with any supplemental brief and any amended settlement documents, and file a proof of service. No earlier hearing date is available for this motion.
5	Seaman, et al. v. SAS Retail Services, LLC 2022-01292199	<u>Plaintiffs' Motion for Approval of PAGA Settlement</u> "Because an aggrieved employee's action under the Labor Code Private Attorneys General Act of 2004 functions as a substitute for an action brought by the government itself, a judgment in that action binds all those, including nonparty aggrieved employees, who would be bound by a judgment in an action brought by the government." <i>Arias v. Superior Court</i> (2009) 46 Cal.4th 969, 986. PAGA settlements are subject to trial court review "to determine whether [they are] fair, reasonable, and adequate in view of PAGA's purposes to remediate present labor law violations, deter future ones, and to maximize enforcement of state labor laws." <i>Moniz v. Adecco USA, Inc.</i> (2021) 72 Cal.App.5th 56, 77. The court has reviewed and considered the papers filed in support of plaintiffs' motion for approval of a \$1,560,534.58 PAGA settlement. The court has the following questions and comments: <u>As to the settlement:</u> 1. Are there 19,000 aggrieved employees? See Hartranft Decl. (ROA 192) Ex. B. If not, how many aggrieved employees are there? 2. The parties should provide the average, high and low individual PAGA payments. 3. Each plaintiff should state his or her total compensation to be received (excluding for any enhancement award and including for any individual claims). Plaintiffs should also submit copies of the individual settlement agreement(s). See Settlement Agreement ¶ A.23. 4. The "Released Claims" provision in paragraph A.23 of the settlement agreement is overbroad. Releases for aggrieved employees other than plaintiffs should not release more than the civil penalties available under PAGA based on the facts alleged in the operative complaint and the notice letter(s) to the LWDA. Subsections (B), (C) and (D) should be removed, as should the third-to-last and last sentences of paragraph A.23. The meaning of the third-to-last sentence is unclear and the last sentence appears duplicative of other statements in the paragraph. 5. The "Released Parties" provision in paragraph A.24 is overbroad. It includes unrelated, ambiguous and/or unidentified third parties such as "affiliates," "partners, joint venturers, affiliated organizations," and "insurers,

		reinsurers and assigns, and each of their past, present and future officers, directors, trustees, agents, employees, attorneys, contractors, representatives, benefits plans sponsored or administered by the Released Parties, divisions, units, and branches, and any other persons or entities acting on behalf of or in concert with any of the foregoing or any persons who Defendant has an obligation to indemnify on account of the Released Claims.” 6. The amount of settlement administration fees stated in paragraph B.2.d appears to contain a typographical error. 7. The phrase “the State of California” should be removed in two places in paragraph B.3. 8. Paragraph B.3 states the aggrieved employees’ releases are effective on the “Effective Date” which is “the date this Settlement is approved, and the Court’s order granting Settlement Approval and Final Judgment.” Settlement Agreement ¶ A.9. Defendant need not fund the settlement until 30 calendar days after the Effective Date. Settlement Agreement ¶ A.11. The court will not require the aggrieved employees to release their claims before defendant funds the entire gross settlement amount. 9. The second sentence of paragraph B.3 should be removed, as its meaning is unclear. 10. Plaintiffs have not provided any case-specific valuation analysis. Plaintiffs must state the legal and factual basis for each claim being settled, must identify the specific discovery (formal and informal) conducted to date, must describe in detail counsel’s investigation of the merits of each claim, and must state how plaintiffs valued each claim being settled. Plaintiffs also must provide specific information sufficient for the court to evaluate whether the consideration being received for the release of the aggrieved employees’ claims is reasonable in light of the strengths and weaknesses of the claims and the risks of the litigation. 11. The following phrase should be removed from paragraph E.1, as the court will not approve a settlement that permits defendant to shorten the PAGA Period: “or Defendant will have the option of moving the end date of the PAGA Period back to such date that there are not more than 252,000 PAGA Pay Periods.” 12. The parties (including all of the plaintiffs and defendant) should advise, in declarations filed with the court, whether, after making reasonable inquiry, they are aware of any class, representative or other collective action in any court that asserts claims similar to those asserted in this action. If any such actions are known to exist, the declarations shall also state the name and case number of any such case and
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		the procedural status of that case, and describe the impact of the settlement on that case. 13. Plaintiffs Gangwer, Steiner, Torres and Negrete must submit copies of their notice letters to the LWDA. 14. Plaintiffs' counsel seeks attorneys' fees totaling one-third of the gross settlement amount. Absent unique circumstances, the court is unlikely to approve an attorneys' fees award that exceeds 30% of the gross settlement amount. Plaintiffs' counsel should address in the supplemental filings whether any such unique circumstances exist here. 15. Plaintiffs' counsel must provide the position (e.g., partner, associate, etc.), years of practice, and experience in PAGA actions for Yesenia Silva, Brooke Waldrop and Randy Hy, as those individuals are not listed in the firm resume. Wilkinson Decl. (ROA 189) Ex. 3. 16. Plaintiffs' counsel seeks reimbursement for \$42,321.76 in costs. Plaintiffs' counsel must submit invoices for all mediations and expert fees. FedEx charges are not recoverable and should be removed. Counsel from Gibbs Mura LLP should submit invoices for the charges for "Class Action Research & Litigation" and "Advantage Sales & Marketing," and explain why those charges should reasonably be reimbursed from the gross settlement amount. Counsel should also explain why the costs related to the arbitration of plaintiff Gangwer's individual PAGA claim should reasonably be reimbursed from the gross settlement amount (see Tindall Decl. (ROA 191) ¶ 18), and why appellate costs should be reimbursed from the gross settlement amount. 17. Each of the six named plaintiffs seeks a \$10,000 enhancement award, for a total of \$60,000 in enhancement awards to be paid from the gross settlement amount. Absent unique circumstances, the court is unlikely to approve an enhancement award that exceeds \$2,500 for each plaintiff (\$15,000 total for the six named plaintiffs). Plaintiffs should address in the supplemental filings whether any such unique circumstances exist here. <u>As to the notice letter:</u> 18. The notice letter should be revised consistent with the above. 19. The notice letter should (i) provide an explanation of PAGA; (ii) describe the factual allegations of the operative complaint; (iii) describe the scope of released claims; (iv) state the gross settlement amount, net settlement amount, and the portions allocated to the LWDA and the aggrieved employees; (v) explain how the individual payments will be calculated; (vi) describe the recipient's responsibility for any taxes payable on the amount received; and (vii) notify the
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		aggrieved employees that they cannot opt out of the settlement and that, even if they do not cash their checks, they will be bound by the release. 20. The "Released Claims" described in the notice letter are inconsistent with the settlement agreement and must, in any event, be revised as stated above. 21. The last sentence of the third paragraph is inconsistent with paragraph C.12 of the settlement agreement. If the parties intend Legal Aid at Work to be the cy pres recipient, the settlement agreement should be revised and the parties and counsel must submit declarations stating whether they have any interest in the cy pres recipient, including in its governance. In addition, if the parties intend Legal Aid at Work to be the cy pres recipient, the parties should also provide a declaration demonstrating the propriety of the cy pres recipient, and explaining why a cy pres distribution is appropriate here, as opposed to, e.g., distributing any unclaimed funds to the State Controller's Office in the aggrieved employee's name. 22. Will the settlement administrator maintain a website for this case? If so, the notice letter should provide the URL for case website and identify the key case documents (including the order and judgment) that will be posted on the website, and should state that judgment will be posted on the settlement administrator's website for at least 180 days. 23. Should the notice letter be provided in any language other than English? If the notice will be provided in a language(s) other than English, a certified copy of the translated notice (together with an English-language copy) should be attached to the proposed order and judgment as an exhibit. <u>As to the proposed order and judgment (ROA 184):</u> 24. The proposed order and judgment should be revised consistent with the above. 25. Counsel information should be removed from the caption page of the proposed order and judgment. 26. The settlement agreement and any amendments thereto should be attached as exhibits to the proposed order and judgment (along with the notice letter in all languages). Paragraph 2 of the proposed order and judgment should be revised accordingly. 27. The proposed order and judgment should state how notice of entry of the judgment will be given to the aggrieved employees. 28. The proposed order and judgment should state that the court orders the parties, their counsel and the settlement administrator to administer the settlement in accordance with the terms of the settlement agreement.
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6	Segura v. Comprehensive Mobile Care, LLC 2026-01541502	<u>Plaintiff's Motion for Preliminary Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers filed in support of plaintiff's motion for preliminary approval of a \$225,000 class action and PAGA settlement. The court has the following questions and comments: 1. Were the motion papers submitted to the LWDA? The proof of service attached to the notice of motion (ROA 18) does not include the LWDA. Plaintiff must file with the court a proof of service identifying the specific documents served on the LWDA, when plaintiff served the documents, and how service was effected. <u>As to the settlement:</u> 2. The class and PAGA periods must have firm end dates to enable the court to evaluate the fairness and reasonableness of the settlement. 3. The parties should provide an estimate of the number of aggrieved employees.